

GIFFIN v. VASCONCELLOS

20CV45004

**DEFENDANT'S MOTION FOR LEAVE
TO FILE CROSS-COMPLAINT**

This is a quiet title action involving property put to temporary use as a location for the cultivation of recreational marijuana. Before the Court is defendant's motion for leave to file a cross-complaint.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Although defendant is representing himself, he is still required to adhere to all the procedural requirements for law and motion, including all local rules. Based on defendant's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

LEMKE v. MERS, INC., et al.

21CV45420

PLAINTIFF'S MOTION TO DEEM RFAS ADMITTED

This is a wrongful foreclosure action. Before the Court is plaintiff's unopposed motion to deem admitted matters contained in a first set of Requests For Admission served upon defendant LoanCity, Inc.

On 07/28/21, plaintiff served a first set of Requests for Admission on said defendant.

Pursuant to CCP §§ 1013 and 2033.250, defendant had 32 days from the mailing to provide a verified written response, making the due date for compliance on 08/30/21. Defendant did not timely (or ever) serve responses. (See Freshman Decl Para 3.)

Pursuant to CCP §2033.280(b), the party propounding RFAs may "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The trial court "shall" grant the motion unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response in substantial compliance with Section 2033.220. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777-778.) Trial courts have no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party. (See *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971.)

Based on the foregoing, Plaintiff's motion is GRANTED. The twenty (20) matters contained in the RFAs are hereby deemed admitted, subject to counsel's confirmation that defendant did not serve substantially complaint responses before the hearing. In addition to the order deeming admitted all matters within the RFAs, the moving party is entitled as a matter of law to monetary sanctions. (CCP §2033.280(c).) Counsel for plaintiff requested a total of \$625.00 in fees and \$186.00 in costs. These amounts are reasonable under the circumstances, in particular noting the bulk of fees were at a paralegal rate. Defendant LoanCity, Inc. is ordered to pay a total of \$811.00 to plaintiff, by and through counsel, by the close of business on December 23, 2021.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.